

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SUMMONS

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TONIA CIVERS

Plaintiff designates New York
County as the place of trial.

Plaintiff,

The basis of venue is:
Location of Accident

-against-

County of New York

PO PAUL HYPPOLITE, SHIELD NO. 16390
AND THE CITY OF NEW YORK

Defendants

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York New York
June 29, 2018

STEVEN ADAM RUBIN, ESQ.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
TONIA CIVERS
71 West 23rd Street, Suite 1623
New York, New York 10010
(212) 643-5402
Our File No. 12042017

TO:

PO PAUL HYPPOLITE
SHIELD NO. 16390
NYPD 25th Precinct
120 East 119th Street
New York, NY 10035

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
TONIA CIVERS

VERIFIED COMPLAINT

Plaintiff,

-against-

PO PAUL HYPPOLITE, SHIELD NO. 16390
AND THE CITY OF NEW YORKDefendants
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Plaintiff, by her attorneys, **STEVEN ADAM RUBIN & ASSOCIATES, PLLC** complaining of the Defendants, respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff **TONIA CIVERS WAS**, and still is, a resident of the County of Bergen, State of New Jersey.
2. Upon information and belief, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, at all times hereinafter mentioned, defendant the **CITY OF NEW YORK**, by its agents, servants and/or employees operated and maintained a police force known as the **NEW YORK CITY POLICE DEPARTMENT**, the headquarters of which are located at One Police Plaza, New York, New York.
4. That Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** is a natural person; was and is a member and employee of the New York City Police Department and Defendant City of New York.
5. That plaintiff has complied with all the conditions precedent to the bringing of this action, and within ninety (90) days after the date of the occurrence herein, on January 16, 2018, plaintiff duly served a written notice of claim upon the Office of the Corporation Counsel of the **CITY OF NEW YORK**, pursuant to law, said notice being verified by oath of plaintiff and/or her representative, specifying their intention to sue by

commencing an action against the defendant, CITY OF NEW YORK and defendant PO PAUL HYPPOLITE, SHIELD NO. 16390 for having caused serious physical injuries to Plaintiff as a result of the negligence, carelessness and recklessness of the defendant CITY OF NEW YORK, and defendant PO PAUL HYPPOLITE, SHIELD NO. 16390, their agents, servants, employees and/or licensees in the ownership, entrustment, management, operation, maintenance and control of a motor vehicle, as well as in negligently hiring, training, and supervising PO PAUL HYPPOLITE, SHIELD NO. 16390, other agents, servants, employees and/or licensees in the ownership, entrustment, management, maintenance and control of the aforesaid POLICE VEHICLE, and that, thereafter, said Defendant CITY OF NEW YORK refused or neglected for more than thirty (30) days, and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within one year of the occurrence and within the time provided by law, this action was commenced.

6. That on May 18, 2018, pursuant to General Municipal Law 50-h, a hearing was held at the Office of the Comptroller or at the office of a designated agent.

7. At all times herein mentioned, Defendant **CITY OF NEW YORK**, by and through its Police Force, the New York City Police Department, was the owner of a 2014 Ford motor vehicle bearing New York State registration number 4911.

8. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** operated the aforesaid motor vehicle bearing New York State registration number 4911.

9. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** operated the motor vehicle with the permission of Defendant **CITY OF NEW YORK**.

10. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** operated the aforementioned motor vehicle with the knowledge of the Defendant **CITY OF NEW YORK**.

11. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** operated the aforementioned motor vehicle with the consent of the Defendant **CITY OF NEW YORK**.

12. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** operated the aforementioned motor vehicle within the scope of his employment with the Defendant **CITY OF NEW YORK**, by and through his employment with the New York City Police Department.

13. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** managed the aforementioned motor vehicle.

14. At all times herein mentioned, Defendant **CITY OF NEW YORK** managed the aforementioned motor vehicle.

15. At all times herein mentioned, Defendant **CITY OF NEW YORK** maintained the aforementioned motor vehicle.

16. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** maintained the aforementioned motor vehicle.

17. At all times herein mentioned, Defendant **CITY OF NEW YORK** controlled the aforementioned motor vehicle.

18. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** controlled the aforementioned motor vehicle.

19. At all times herein mentioned, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** operated the aforementioned motor vehicle in the scope of his employment with **CITY OF NEW YORK**.

20. At all times herein mentioned, Plaintiff **TONIA CIVERS** was seated in the driver's seat of a parked, 2011 BMW motor vehicle bearing New York State registration number E71JHC.

21. At all times herein mentioned, East 127 Street, at or near 5th Avenue, in the County City and State of New York, was a public roadway and/or thoroughfare.

22. That on December 4, 2017, Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** was operating the aforementioned motor vehicle owned by the defendant **CITY OF NEW YORK** at the aforesaid location.

23. That on December 4, 2017, Plaintiff **TONIA CIVERS** was seated in the driver's seat of a parked 2011 BMW motor vehicle at the aforementioned location, more specifically at 2 East 127th Street, New York, NY.

24. That on December 4, 2017, at the aforementioned location, the motor vehicle owned by Defendant **CITY OF NEW YORK** and operated by Defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390** came into contact with the parked motor vehicle Plaintiff **TONIA CIVERS** was seated in.

25. That as a result of the aforesaid contact, Plaintiff **TONIA CIVERS** was injured.

26. That the aforesaid occurrence was caused wholly and solely by reason of the negligence and recklessness of the Defendants without any fault or negligence on the part of the Plaintiff contributing thereto.

27. That Defendants were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicle; and the Defendants were otherwise negligent, careless and reckless under the circumstances then and there prevailing.

28. That by reason of the foregoing, Plaintiff **TONIA CIVERS** sustained severe and permanent personal injuries; and Plaintiff **TONIA CIVERS** was otherwise damaged.

29. That Plaintiff **TONIA CIVERS** sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

30. That Plaintiff **TONIA CIVERS** sustained serious injuries and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

31. That Plaintiff **TONIA CIVERS** is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is seeking to recover only those damages not recoverable through no-fault insurance under the facts and circumstances in this action.
32. That this action falls within one or more of the exceptions set forth in CPLR §1602.
33. That by reason of the foregoing Plaintiff **TONIA CIVERS** has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.
35. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, its Police Department, agents, servants and/or employees, carelessly, negligently, and recklessly hired applicants for the position of police officers, including but not limited to defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390**.
36. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, its Police Department, agents, servants and/or employees, carelessly, negligently, and recklessly trained applicants for the position of police officers, including but not limited to defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390**.
37. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK, ITS POLICE DEPARTMENT**, agents, servants and/or employees, carelessly, negligently and recklessly supervised, controlled, managed,

maintained and inspected the activities of its police officers; including but not limited to defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390.**

38. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, its Police Department, agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and reckless manner in carrying out their official duties and/or responsibilities, including but not limited to defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390.**

39. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK** its Police Department, agents, servants and/or employees, carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and recklessly in carrying out their official duties and/or responsibilities, including but not limited to defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390.**

40. That the occurrence and serious and permanent injuries sustained by plaintiff, were caused solely by, and as a result of the reckless and negligent conduct of the defendant, **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**, defendant **PO PAUL HYPPOLITE, SHIELD NO. 16390**, its agents, servants and/or employees, as set forth above, without any part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers, including but not limited to **PO PAUL HYPPOLITE, SHIELD NO. 16390.**

41. That solely by reason of these reckless and negligent acts of the defendants, its agents, servants and/or employees, plaintiff became and was

rendered sick, sore, lame, bruised and disabled, experienced great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in the future; has been unable to attend her usual occupation and avocation in the manner required and has suffered damages as a result, and in other ways sustained a loss of diverse sums of money;

42. This action falls within one or more of the exemptions set forth in CPLR §1602;
43. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction;

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
June 29, 2018

Yours, etc.

~~STEVEN ADAM RUBIN~~
~~STEVEN ADAM RUBIN & ASSOCIATES, PLLC~~
Attorneys for Plaintiff
TONIA CIVERS
71 West 23rd Street
New York, NY 10010
(212) 643-5402
Our File No. 12042017

ATTORNEY'S VERIFICATION

STEVEN ADAM RUBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at STEVEN ADAM RUBIN & ASSOCIATES, PLLC, attorneys of record for Plaintiff, Tonia Civers. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
June 29, 2018

STEVEN ADAM RUBIN